

CHRISTENDOM COLLEGE

CHRISTENDOM COLLEGE ONLINE LEARNING

The History of Western Political Thought

Lecture 4: John Locke, Classical Liberalism, and the Origins of Social Contract Theory

Introduction

Greetings and welcome to this lecture on John Locke, Classical Liberalism, and the Origins of Social Contract Theory. I would like to begin by offering you a transition from the material about Nikola Machiavelli that we were speaking about in the previous lecture and then introduce the material for this lecture. So to begin, one of the questions that political scientists ask themselves as we study the history of political thought is what happens to political science in the decades and centuries following Machiavelli's groundbreaking and controversial writings. And one of the phenomenon that we observe is that there is a significant difference in approaches to political science between Machiavelli and those who come after him. As we saw in the previous lecture, Machiavelli really isn't interested in answering the big traditional questions that political science and political philosophy had been interested in asking and answering in the centuries before Machiavelli. In Machiavelli's writings, unlike those of Aristotle or St. Thomas Aquinas, for example, we do not see engagement with important questions like what is human nature, what is the purpose of human life, what is government, what should it do, and how should it be structured? Unlike Machiavelli, those who succeed him will be interested in returning to the asking and answering of these all-important big questions. We might call them, for shorthand, the old Aristotelian or Thomistic questions, the same kinds of questions about human nature and about government that we saw Aristotle and Aquinas as interested in asking. However, as you might suspect, Machiavelli's successors certainly aren't going to be giving the same answers to these questions as previous thinkers did. Machiavelli's successors do imbibe from him a rejection of the older Aristotelian philosophy, of theories of teleology, the idea that human beings have a final good and a final end. So we need to see how these new folks can answer these big, old, traditional questions with very new kinds of answers. When I teach this material to my students, I often tell them that Machiavelli's successors are interested in asking Aristotle's questions, but they certainly are not going to provide Aristotle's answers. So with that as background, I would like to move into the material for this lecture. And I would like to speak briefly about two figures who I consider to be two of the most important successors to Machiavelli. Both of these figures are Englishmen by the name of Thomas Hobbes and John Locke. Thomas Hobbes lives from 1588 to 1679. Locke, about a generation or maybe a little more later, Locke lives from 1632 to 1704. Now, as the dates indicate, Hobbes comes first, and his importance lies in the, quote unquote, invention of two influential concepts, the concept of the state of nature and the idea of social contract theory. Now, these are two terms or concepts that you may have heard of before. These are two terms or concepts that you may be somewhat familiar with. But I would like to begin

with a brief introduction to what these ideas and concepts mean. Now, here, for purposes of my brief introduction, it doesn't really matter whether we're talking about Hobbes or Locke. The two thinkers do have some differences in their understanding of these concepts. But for my purposes, I am going to focus more on the similarities rather than the differences. So let's begin with the concept of the state of nature.

The State of Nature

What does this concept mean and why is it important? Well, to begin to answer that question, let's think back to our lecture on Aristotle. If you recall, Aristotle says that human beings are only capable of attaining their highest good, of achieving their final end, of attaining what Aristotle calls happiness as members of a political community. If you recall, Aristotle says, quite famously, that man is by nature a political animal. And one of the things that he means by that, as I've indicated, is that a human being can only flourish, can only attain his good as a member of a political community. Now, Hobbes and Locke are going to share some of Aristotle's insights on this matter, but they are also going to depart from Aristotle in important ways. So first, the similarities. Like Aristotle, both Thomas Hobbes and John Locke will agree that there is a quite close connection between what we might call human nature and our understanding of what a political community is and how it should and should not be structured. So Hobbes and Locke agree that all political philosophy must begin from some determinate conception of human nature, from some theory of what a human being is and what his place in the world is understood to be. However, Hobbes and Locke disagree quite vehemently with Aristotle. They disagree with the claim that man is by nature a political animal. Now, again, when I present this material to my students, that claim is always confusing to them. What could these two Englishmen mean when they say that man is not by nature a political animal? Well, one of the things that they intend by making this novel and controversial argument is that Aristotle's claim is false. And in particular, Aristotle is incorrect in asserting his thesis that man is inherently a social being. Unlike Aristotle, Hobbes and Locke actually want to advance the view that man by nature is not inherently a social or political being, but instead is by nature an individual and solitary creature. And it's this claim that man in his nature, in his essence, is both an individual and a solitary creature. This is where the concept of the state of nature comes in. Now, in order to provide evidence for this claim, I do need to clear up a few potential misunderstandings. One misunderstanding that often arises about this claim, this claim about man's individual and solitary nature is the question of whether human beings have ever actually lived in this way. In other words, students ask me, can we look back to a particular period in history? Can we look back to a particular place at a particular time and actually find human beings not living in community with one another, but in fact living in this individual, solitary manner? This is a very good question, it's a very natural question, and it's a very understandable question. Since if we look at the world around us, whether here in the United States or overseas, we always see, even if in different forms, human beings living in communities of one type or another. So what do folks like Hobbes and Locke have to say in response to this question? Can we ever find evidence of man living in this individual and solitary way? And their answers to this question are actually quite complex. Both Hobbes and Locke do offer some scant evidence that there are periods of time and that have existed places where men have in fact lived in this way. But what I want to emphasize is that this historical claim, whether true or whether false, doesn't actually matter.

And why doesn't this historical claim about how human beings lived actually matter? Well, the answer to that question is that this claim about man's individual and solitary nature is not intended primarily as a claim about history, but rather it is intended to be an introduction to what I call "a kind of philosophical thought experiment." So with that as background, let's follow Hobbes and Locke in thinking through the problem. One of the things you can envision, both Hobbes and Locke, as asking us to do, is to imagine what it would be like for man to live in this individual and solitary manner that we have been describing. Whether they have ever actually lived in this way or not is less important, but both Hobbes and Locke think that we can learn something, that we can gain a greater insight into human nature if we can imagine, even if only philosophically, what it would have been like for man to live in this way. And it's this imaginary thought experiment. It's this idea, this imaging of man, in an individual and solitary state that both Hobbes and Locke refer to as the state of nature. So does this state ever actually exist? Maybe, maybe not, but that isn't going to be important going forward. So if you can imagine sort of putting yourself in this frame of mind, if you can sort of conjure up an image of what it would look like for man to live in this state, what might we see? Well, both Hobbes and Locke tell us that at first glance, this individual, solitary state of nature can look somewhat appealing. They both describe this state as a state of maximum equality, liberty, freedom, and rights. In this state, every individual and solitary man is equal to every other. Every one possesses all of his rights in a completely free and unrestricted manner. And every man is at liberty to do whatever he pleases. However, as you might suspect, problems in this state arise and they arise somewhat quickly. Because this state is a state in which man lives prior to the formation of political communities, because this is a state in which man lives prior to the formation of government, we must also understand that there is no central authority to adjudicate disputes that might arise between two men in this imagined state of nature. One way of thinking of this is that there is no central authority with punitive power. In other words, there is no central governmental authority with power to punish. Now, when I present this to my students, I try to present them with fanciful, although illuminating examples. And I'll just use one of those examples here. Imagine I am an individual and solitary man living in this state of nature. One of the things that I will have to do is to provide food for myself and potentially for my family. So let's say that I go out in the woods and I kill a deer so that I can use the deer for food. And before I can drag the deer back to my home and sort of prepare it as it needs to be prepared, someone else swoops in and just steals it from me. What am I to do? Well, if that happened in our contemporary society, the first thing that I would probably do would be to call the police. But as I tell my students somewhat tongue-in-cheek, there is no such thing as the state of nature police. There are no state of nature courts where I can pursue criminal or civil claims against my fellow men. So although this state at first glance can look appealing, the ideas of maximum equality and freedom and liberty certainly do have a certain appeal to them, nonetheless we can see without too much thought that problems in this state are likely to arise and they are likely to arise quickly. Because I can't call the police, because I can't take anybody else to court, the only remedy available to me in this state is to punish sort of transgressions of my rights by taking matters into my own hands. And as you might imagine, if every human being has to take such matters into his own hands, violence and instability will follow quite quickly. This is the source of a famous quotation by

Thomas Hobbes that you may have heard of before that life in the state of nature is, quote, solitary, poor, nasty, brutish and short.

So despite the initial appeal and despite the initial plausibility of thinking of men as individual and solitary creatures living in a state of nature, we can see that problems are going to arise and we can understand that those problems are going to arise rather quickly. Thus, the next question to ask is,

The Purpose of Government

what is to be done about these problems, about this potential violence and potential instability that characterizes the state of nature? And here I want to focus on John Locke in particular. John Locke tells us that even though human beings quite clearly value their equality, liberty, rights and freedoms, he also knows that without bodily security and safety, these other things are essentially meaningless. In other words, you can possess as much freedom and liberty as you desire, but if you are not safe in your bodily integrity, those liberties and freedoms really do cease to matter. So the question follows how can men go about making themselves more secure?

Locke's answer is at first glance, a controversial one, but when we talk about it a little bit more, I actually think his answer is quite plausible. Locke begins by telling us that men living in this state are going to have to acknowledge the need to surrender some of these freedoms and rights for the sake of safety and security. Now, when you hear a statement like that, you may be suspicious of the idea of surrendering rights and freedoms, but I don't think we should read too deeply into this claim that John Locke makes. Why? Because this decision to surrender rights and freedoms is not an individual decision that you or I or any other solitary person makes.

Rather, this decision must be understood as a collective one. In order to be secure, we need to know that everyone is going to be surrendering the same measure, the same amount, the same kinds or types of rights and freedoms as anyone else. I'm only willing to give up some of my rights and freedoms for the sake of safety and security if I can be assured that everyone else is going to do the same thing. And if we engage in collective action in this manner, Locke believes that by banding together, we will be better able to ensure our security and our safety. So with that in mind, a question that will naturally follow is, what does it mean when Locke says that men must quote unquote surrender some of their rights and freedoms? Surrender seems like a strong word, right? To surrender something gives the impression of giving it up entirely. And although I've been using the concept of surrendering one's rights and freedoms, I do want to make an important clarification here, a clarification that we find in Locke himself. To surrender rights and freedoms does not mean to give them up entirely. We don't simply give them up, it's not as if they sort of float into the air out there, never to be seen again. Instead, surrendering rights and freedoms means that we give them over to a government to exercise them on our behalf. So it's not as if these rights and freedoms disappear, never to be seen again, but rather these rights and freedoms are given over to an authority that we create because we acknowledge that in certain, although by no means all instances, our safety and security is better insured when these rights and

freedoms are exercised by the government on our behalf than if we were to exercise them individually. Go back to my previous example. We who live in society understand that our right to protect ourselves from the invasions of others, to throw people in jail, to in the extreme case carry out capital punishment, those are rights that we don't want exercised simply by individual men and women, but rather by the government acting on behalf of us all. So even though these rights and freedoms may be in one sense surrendered, we do still possess them, but by allowing the government to exercise them and punish violations of them, we can ensure for ourselves a greater measure of safety and security. And so this collective agreement to give over a share of our rights and freedoms to the government is something that Locke says we do freely and we do this by giving our consent. It's not as if the government can just take whatever share of rights and freedoms it desires. It can only quote unquote take the rights and freedoms that we freely consent as people to give over to it. And this giving over of rights and freedoms

The Social Contract

to the government by our mutual consent is what Locke refers to as the formation of the social contract, our second big concept. Just to summarize, this is how the idea works. In the state of nature, men are free and equal beings who possess rights and they believe, as we believe, that government comes into existence only by our consent and only for the reasons that we authorize it to act. It is this belief that lies at the heart of what we might call classical liberalism. According to Locke, the formation of this contract, this process whereby consent is given and a government is formed, this process according to Locke is in fact a democratic process. Only those who want to participate will participate. No one can be forced against his or her will to participate in this process and decisions in this process are made by majority vote. So as we move towards wrapping up this lecture, there are a few more questions we would like to address. And the question that naturally follows next is what happens after this government is formed? In order to know something about what happens after the government is formed, we first need to ask what the purpose of government is. Obviously, as we have been discussing, the primary purpose for the formation of government is safety and security, but government also exists for the protection of what John Locke famously calls inalienable rights. And these rights, those that he calls inalienable, are for Locke, life, liberty, and property. Now, what does it mean, you might ask, for a right to be inalienable? Well, according to Locke, an inalienable right is one that no person and no government can ever legitimately take from you. You may be able to surrender a certain share of your freedom and your liberty. You may be able to give over a share of that freedom and liberty to government so that it may be protected on your behalf, but not so with the inalienable rights. They cannot be alienated, they cannot be given up because, as Locke would say, they are so fundamental to our nature to how we understand ourselves as human beings. Now, if you think back to that list, life, liberty, and property, the inclusion of property might be of particular interest. Thomas Hobbes, Locke's great predecessor, in fact, did not include property in his list of the inalienable rights, but Locke and the Americans following Locke will include property in their list. Locke understands one of the chief responsibilities and duties of government to be the protection of private property, and as I've already said, the American founders follow Locke on this point, and we can see, even if briefly, the ways in which Locke greatly influences our American understanding of property rights.

The Structure of Government

So, what about the structure and the organization of the government itself? And it is here that we can also discover another very important Lockean invention. John Locke is the first political philosopher to articulate the idea of what we have come to call the separation of powers. What is the separation of powers? The separation of powers is the idea that government primarily serves three functions, legislative, executive, and judicial. The legislative makes the laws, the executive enforces them or carries them out, and the judicial interprets the laws. Now, Locke is certainly not the first political philosopher to speak of what we might call the legislative, executive, and judicial branches, but he is the first to suggest that these three important governmental powers actually be separated and exercised by different persons and different groups. Now, this idea of the separation of powers and of the division of government into three branches is certainly an idea that is familiar to us as Americans. But we must also understand that Locke's conception of the separation of powers does not function precisely in the same way as does the American conception. What do I mean by that? Well, in the American system, we call these three separate powers or these three separate branches co-equal. No one branch, legislative, executive, or judicial is in theory superior to any other. That notion of the equality of the branches is not yet a concept we find in Locke's political philosophy. Although Locke believed that these powers should be separated and exercised by different persons, he nonetheless held that the legislative power is supreme. So that's an important and crucial difference between Locke's understanding of the separation of powers and the later American understanding.

Conclusion

So to summarize and to conclude, why are John Locke and social contract theory important for us? Well, as I said earlier, this branch of political philosophy represents a return to asking the big questions about human nature and about the nature of political community that political philosophers prior to Machiavelli had always been concerned with. These ideas, the ideas of Locke and of social contract theory also show us a new way forward, a new path for political philosophy to take after the rejection of the old Aristotelian worldview. But also, these ideas are important and continue to be important because of the influence they would have on yet later thinking. In particular, John Locke is highly influential on Thomas Jefferson and his writing of the Declaration of Independence. And these ideas about social contract theory also play an important role in the framing of the American Constitution.

Study Questions

1. Which of the following is true about the State of Nature?
 - A) It is the state of minimal equality, liberty, and rights
 - B) We have historical evidence that man once lived in this state long ago
 - C) It was a thought experiment created by Machiavelli to disprove Aristotle's theory of man as a political animal
 - D) It illustrates the need for a central power to secure man's life, liberty, and rights

 2. Life, liberty, and rights are meaningless without:
 - A) Government
 - B) Security
 - C) Money
 - D) Insurance

 3. Which of the following is NOT one of the inalienable rights listed by John Locke?
 - A) Property
 - B) Life
 - C) Wealth
 - D) Liberty

 4. Which branch of government did Locke hold to be supreme?
 - A) Legislative
 - B) Executive
 - C) Judicial
 - D) None, they are co-equal
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